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GUNS, HUMAN RIGHTS, AND HUMAN LIVES: COMPARATIVE LESSONS FROM NIGERIA AND THE UNITED STATES

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ABSTRACT

This article recognizes the duty of the United States to safeguard its citizens from the harm caused by gun violence using the right to life framework. It considers statistics on gun violence, including homicide rates, mass shootings, suicide rates, and accidental homicides, while also highlighting the urgency of the problem. The article aims to identify and examine the human rights impacted by gun violence in the United States, with more emphasis on the right to life. By analyzing federal legislative enactments, key Supreme Court decisions, and international human rights frameworks, it demonstrates how the prevalence of gun violence infringes upon fundamental rights such as the right to life, security, equality, freedom of religion, freedom from discrimination and freedom of expression. Through a comparative analysis with other countries that have successfully regulated private gun ownership, the article highlights the limitations and challenges of current U.S. laws and policies. It calls for a unified approach by all three branches of government to effectively address and mitigate gun violence, emphasizing that the failure to do so constitutes a continuous breach of the citizens' right to life and other essential human rights.

Keywords: Gun Violence, Human Rights, Right to Life, Second Amendment, Nigeria, Comparative Law.

INTRODUCTION

Individual gun ownership in the United States is deeply entrenched in the historical and cultural life of United States citizens. This deep-rooted tradition dates to the American Revolution which was an uprising initiated by thirteen of Great Britain's North American colonies, starting in 1775 and concluding with a peace agreement in 1783. These colonies came together to form the United States of America (Britannica, n.d.). Before then, to fight for her independence, men from amongst the civilian population fought together with locally made guns which they owned. These men who came together in well-regulated groups were known as militias. After this victory, many Americans did not view guns as just a weapon, but as a symbol of liberalism, and its ownership - a culture (Doeden, 2019). After the establishment of the new nation - United States, the embodiment of liberalism had to be evident in its most pivotal legislation; thus, it is reflected in the wordings of the Second Amendment "A well-regulated Militia, being necessary to the security of a free State, the right of the people to keep and bear Arms, shall not be infringed" (U.S. Const. amend. II).

Nevertheless, the prevalence of this gun culture has given rise to numerous intricate challenges, while also impacting several fundamental rights, most importantly and often regarded as the most

paramount—the right to life. Right to life is a fundamental right that is contained in the constitution of most nations, and it is also a fundamental component in International Human Rights. This right is contained in the Declaration of Independence (1776) and 14th Amendment of the United States Constitution (U.S. Const. amend. XIV), as well as the Universal Declaration of Human Rights (United Nations General Assembly, 1948) and other instruments that will be addressed during this article. This right identifies that every person has the inherent right to live and should be protected (International Covenant on Civil and Political Rights, 1966, art. 6). It points to the fact that the government of a state owes its citizens protection from any form of violence that could result in loss of lives.

This article does not attempt to address all the legal, political, or humanitarian issues associated with gun violence and human rights. Instead, it highlights that while the right to bear arms is significant, the resultant gun violence severely impacts other essential rights. Broadly, this article is divided into three parts.

The first part focuses on the statistics of gun violence in the United States, underscoring that firearm access is a primary cause. Other contributing factors will be mentioned, as well as the consequences of gun violence. The second part examines the response by the United States government so far. It begins with a look at other nations that successfully addressed gun violence despite laws permitting individual ownership. It then explores federal legislative efforts and Supreme Court decisions regarding the Second Amendment, demonstrating that federal actions have been insufficient. The third part, considered the crux of this article, addresses the human rights impacted by ongoing gun violence. These include the right to security of persons, freedom from racial discrimination, freedom of religion, expression, opinion, and most importantly, the right to life. These rights are analyzed through the lens of international human rights. For instance, Article 6 of the International Covenant on Civil and Political Rights (ICCPR) (1966) obligates state parties to safeguard their citizens' lives. This article argues that the U.S. government's failure to resolve gun violence constitutes a breach of this obligation.

The conclusion reiterates the purpose of this article: to remind the United States government of its obligations under international human rights law and to advocate for a collective effort by all three branches of government as the most effective solution to the gun violence crisis.

GUN VIOLENCE IN THE UNITED STATES: IN ITS NUMBERS

As far back as 1873, an armed white mob who were angry at the results of the Gubernatorial Election in Louisiana attacked a group of African Americans and killed about one hundred and fifty (150) of them on Easter Sunday. It has only gotten worse (Equal Justice Initiative, n.d.). Statistics on gun violence and its correlation with homicidal rate is an eye sore. From the Civil War to the present day, about 567,000 Americans have been recorded to have died in combat. Surprisingly, over one million American civilians have been killed by firearms in the United States. More alarming is the fact that one out of every four deaths among teenagers ages 15 to 19 years old are credited to firearm injuries (Bilchik, 1996). It is no news that firearms account for most of the homicides in the United States. In the year 2019, 13,958 homicides were traced to firearms. This was 76.1% of the entire recorded homicide for that year.

TWO MAJOR CAUSES OF FIREARM HOMICIDE IN THE UNITED STATES

Suicide

The year 2021 is known to be the year with the most fatalities from gun violence. Suicides accounted for more than half of the United States gun death in that year. 48,830 people died from gun-related injuries according to the Center for Disease Control (CDC). Of these deaths, 54 percent were attributed to suicide, 43 percent were attributed to murder while 3 percent were attributed to other factors such as accidental, deaths involving law enforcement or undermined circumstances. In 2022, overall gun death decreased to 48,117, however number of gun suicides reached to an all-time high of 26,993 which is a 1.6 percent increase from the 2021 record. The CDC also noted that guns remain the leading cause of death for children and kids for five straight years (Centers for Disease Control and Prevention, n.d.).

Mass Shootings

Mass shootings ultimately result in mass killings. The Federal Bureau of Investigation (FBI) defined mass killing as an instance where at least 4 persons are murdered with a gun (Mayors Against Illegal Guns United States, n.d.). Gun violence Archive defines it as instances with at least 4 people shot or killed besides the shooter (Gun Violence Archive, n.d.). In the case of mass shootings which result in the death or injury of four or more people, firearms are used to execute most of these incidents as the design of some of these firearms allow multiple firing and rapid loading of the firearms. In October 2002, people living in the greater Washington DC area were characters in a horror movie. In what reoccurred for three (3) weeks, two expert snipers prowled the Beltway suburbs killing ten people and wounding four in random shootings. Each incident reflected a shared hallmark, - the victims were brought down with a solitary shot from a considerable distance in public spaces like gas stations or shopping centers, and the escape was imperceptible. The Montgomery County Police Department, assisted by the FBI, the Bureau of Alcohol, Tobacco, Firearms, and Explosives (ATF), and the US Secret Service, finally apprehended the killers at an interstate rest area on October 24, 2002. The break in the case was a link to earlier shootings in Alabama, Louisiana, and Washington state by the same men; those crimes resulted in an additional seven deaths and seven injuries (Stein & Armitage, 2021). A memorial was held for the victims of a shooting on the Michigan State campus in February 2023 and on the wall set up for tributes, an inscription was written "How many more?". 2023 witnesses 656 mass shootings, almost more mass shootings than days in an entire year (Habeshian, 2024). So, how many more?

Considering these high numbers, it is fair to investigate the contributing factors. The reason for these high numbers is not far-fetched - easy access to firearms without strict regulation. The high rate of suicide, murders and attempted assassination can all be traced to the ease in accessing firearms. For example, 80% of firearms used in school shootings were gotten from family members (National Institute of Justice, 2022). Most of the suicides by children are carried out using the firearms obtained from family members. One of the most popular mass shootings in the United States was at the Las Vegas 2017 music festival which was perpetrated by someone who obtained firearms legally (Glum, 2017). Hence the arguments that background checks are carried out before licenses to own guns are given or that most of the guns used to carry out homicides are illegal will not suffice.

Poor Mental and Emotional State is also another reason to consider. Research has shown that in instances of mass shooting, the perpetrators of these acts commit it with no intention to come out

alive (Warner, 2022). Negative personal experiences cause the perpetrators to become very bitter, sad and angry and certain groups of people become their target due to their mental state at that time. Many of the persons who are later termed serial killers are known to have serious life challenging mental or emotional problems that lead up to who they end up as, this applies to mass shooters as well. Furthermore, early childhood trauma could lead to poor mental and emotional state which would in turn, turn a child to a violent person (Katembu & Zahedi, n.d.).

Online Radicalism is also relevant in this conversation. Acts of violence may ensue when individuals embrace radical viewpoints through online interactions. The impact of social media in this era cannot be overstated. While not everyone will be radicalized and compelled to partake in heinous acts, some may succumb to such influences. An illustrative case is the individual responsible for a mass shooting in Buffalo, New York in 2022, resulting in the deaths of 10 black individuals. This perpetrator had been an active participant in various online platforms that endorsed racism and violence. The individual went to the extent of live streaming the heinous act on Twitch (Grayson, 2022).

CONSEQUENCES

The resultant effect of gun violence is loss of life or lives. A family or community can fall apart. Age long rivalry and bitterness could ensue between races, families and communities. This could even metamorphose into a civil war between communities. Economically, gun violence costs add up to $557 billion each year. These amounts can be generated from firearm injuries, medical bills, criminal justice system resources, lost wages, compensations and so on (Joint Economic Committee Democrats, n.d.). Children are generally regarded as the future of any nation; gun violence also affects children. Economic struggles often arise in a child's future due to challenges that follow from a mass shooting. In a situation where the child loses his/her parents from gun violence, the child will find it difficult to survive. Children have also accidentally taken their lives while playing with their parents or family members' guns. Generally, traces of sadness and pain are the aftermaths of gun violence which ultimately leads to an infringement on the right to life of a person.

THE UNITED STATES RESPONSE TO GUN VIOLENCE SO FAR

The response by the United States government so far could be below par. As Sadat and George (2019) mentioned in their article, "The U.S. government is fully capable of managing crises of this magnitude. Compare, for example, its response to high rates of death and injury from motor vehicles in the 1950s. The federal government adopted mandatory safety measures, imposed penalties for rules violations, and funded research studies. In contrast, few regulations or studies have focused on firearms. Perhaps unsurprisingly, mortality rates from firearm violence have increased since the 1950s, while those from motor vehicle accidents have declined 59%. Indeed, when it comes to guns and gun violence, the government -- and the media -- claim to be powerless" (p. 6). In essence, their opinion underscores the idea that the government has the potential to reduce gun violence significantly through proactive measures but has so far failed to do so. I think so too.

HOW OTHER COUNTRIES HAVE ADDRESSED GUN VIOLENCE

This issue is not unique to the United States; some governments faced challenges in regulating private gun ownership and have successfully addressed them. For instance, the United Kingdom (U.K.) fell

victim to a mass shooting where 16 school children and one adult in Dunblane Scotland were killed. At the time when this incident happened, there was no regulation on handguns in the U.K. After the mass killing, the government introduced two laws in quick succession (Firearms (Amendment) Act, 1997; Firearms (Amendment)(No.2) Act, 1997) which in effect created a near total ban on privately owned handguns. The U.K. has not experienced a mass shooting since Dunblane in 1996 (Solly, 2021). The story is similar in Australia. In 1996, a gunman killed 35 people, within two weeks the government of Australia banned semi-automatic rifles and pump-action firearms and retrieved over 650,000 assault weapons. The legislators further enacted a law that permitted license for guns only in "genuine need" circumstances (Barry, 2022). Other laws were passed following this law with further restrictions and harsher punishments for misuse of handguns. Anti-trafficking laws and restrictions on the types of handguns that can be owned by civilians were also passed. Since 1997, the percentage of Australians possessing a firearm license has experienced an almost 50% reduction, accompanied by a noteworthy decline in the firearm-related homicide rate (Barry, 2022).

In Nigeria, private gun ownership is illegal. Currently, the only set of people who can possess guns are law enforcement agents. These persons are under strict obligation to account for every bullet in their guns. The law regulating firearms in Nigeria is the Firearms Control Act (Firearms Control Act, 1959). The Act provides that a person who wants to own a firearm in Nigeria must obtain a license from the Inspector General of Police (Firearms Control Act, 1959, Sec. 4). The law excludes persons under the age of 17, persons of unsound mind, persons with defective eyesight, ex-convicts and persons with intemperate habits (Firearms Control Act, 1959, Sec. 7(2)). The law further states that anyone who has in their possession unlicensed firearms, who imports or exports firearms or ammunition other than through prescribed ports or who manufactures, assembles, or repairs firearms and ammunition unlawfully shall be liable to a minimum sentence of ten (10) years imprisonment (Firearms Control Act, 1959, Sec. 28). Hence under the Act, gun ownership is permitted subject to the approval of the Inspector General of police. The type of guns permitted are also specifically listed in the Act. However, on May 22, 2019, President Muhammadu Buhari, the then President of Nigeria signed an executive order to remove, revoke and banish all firearms certificates and licenses throughout Nigeria for private persons (Ochojila, 2023). The implication was that all firearms owned by citizens of Nigeria licensed or otherwise became illegal. The President acted under the power granted to him by the Act (Firearms Control Act, 1959, Sec. 35) which provided that the President if he deems fit may at any time by proclamation prohibit the possession of or dealing in any firearms or ammunition either throughout the federation or any part thereof. Therefore, since the proclamation of the then President of Nigeria in 2019, private gun ownership in Nigeria became illegal. In 2023, Nigeria is ranked 127th position in the world in Guns per 100 residents while the United States is ranked 1st (Nation Master, n.d.). While the United States has had 288 school shootings between (Jan 2009 - May 2018), Nigeria has had just four (4) (World Population Review, n.d.). It is noteworthy to state that since the Presidential proclamation, firearm possession is treated as a strict liability offense hence punishable without any need for proof. It therefore suffices to say that countries with strict gun restriction laws have managed to curtail gun violence in their territories.

While some countries have successfully reduced gun violence through stringent measures, the United States has not achieved the same level of success. This could be attributed, in part, to the careful balance lawmakers strive to maintain regarding the Second Amendment, which protects the

right to bear arms. Nevertheless, despite various legislative enactments and significant Supreme Court decisions aimed at regulating firearms, the rates of gun violence in the U.S. remain alarmingly high. This section will briefly delve into the legislative efforts and key court rulings that have shaped the landscape of gun regulation in the United States.

LEGISLATIVE EFFORTS

Firearms are subject to regulation at both the federal and state levels; however, for the scope of this article, the focus will be exclusively on federal enactments. The National Firearms bill of 1934 (26 U.S.C. §§ 5801-5872, 2018) represents one of the earliest federal gun control laws. It taxed the sale of some weapons such as short-barreled rifles and shotguns, automatic weapons, silencers. However, the law was ineffective in controlling gun violence. This was evidenced by the death of one of the United States most adored Presidents, President John F. Kennedy who was killed with an imported rifle (Stevens Institute of Technology, n.d.). Congress in a more assiduous attempt to curb the gun violence menace passed a legislation known as the first comprehensive gun legislation - The Gun Control Act of 1968 (18 U.S.C. § 921, 2018).

The Gun Control Act of 1968 focused primarily on regulating commerce between states for firearms by generally criminalizing firearms transfers except among licensed manufacturers. Over the following decades gun control through legislation became more popular. The Gun Control Act of 1968 (18 U.S.C. § 922(g)) prohibited certain classes of people from buying, selling, using, owning, receiving, shipping, carrying, possessing or exchanging any firearm or ammunition. Those prohibited included any individual who had been convicted in any court of a "crime punishable by imprisonment for a term exceeding one year," is a fugitive from justice, is an unlawful user of or addicted to any controlled substance has been adjudicated as mentally defective or has been involuntarily committed to any mental institution (21 U.S.C. § 802).

The Firearm Owners Protection Act of 1986 (Pub. L. No. 99-308, 100 Stat. 449, 1986) prohibited the sale of automatic firearms manufactured after the enactment of the law. Additionally, it mandated approval from the Bureau of Alcohol, Tobacco, Firearms and Explosives (ATF).

The pressing question at this juncture is: despite numerous legislations, has the United States effectively addressed the issue of gun violence? Regrettably, the answer appears negative. Statistical data and reliable sources indicate that, rather than diminishing, the death toll from gun violence continues to rise despite the enactment of further legislation. For instance, in 2021 alone, there were a staggering 692 mass shootings (Gould et al., 2021). The story remains the same. With the latest federal enactment being The Bipartisan Safer Communities Act, signed on June 24, 2022. After two several mass shootings in 2022, President Joe Biden said at the White House "God willing, it's going to save lives" (Judd, 2022). What could be the cause? Why are these legislations not yielding fruits? The answer might be as straightforward as this - You want fewer gun violence, pass stricter laws (Morral & Smart, 2023). Stricter regulations seem to lower the incidence of firearm-related homicides and suicides. Additionally, evidence shows that child access prevention laws effectively decrease firearm homicides and self-inflicted injuries among young people (RAND Corporation, n.d.).

KEY COURT DECISIONS

It is crucial to examine some pivotal key court decisions in shaping the broader legal framework governing firearms. These court rulings have not only influenced the interpretation and enforcement of existing laws but have also set important precedents that continue to shape the landscape of gun regulation in the United States.

The judicial arm of the government of the United States is saddled with the responsibility of interpreting the law enacted by the legislative arm of government. Therefore, the laws that are written by the legislative arm of government are subject to the interpretation of the judiciary (United States Courts, n.d.). More so, considering the very rigorous process of amending the United States constitution which has not been amended since 1992 (United States Senate, n.d.), The United States has had no other choice than to leave the determination of issues of national importance in the hands of the nine (9) justices of the Supreme Court. Pursuant to the fact that gun ownership is a constitutional matter, the Supreme Court on several occasions has been invited to interpret several legislations on the subject matter. I will now delve into some key references.

UNITED STATES V. MILLER

In United States v. Miller (1939), a federal district court charged two persons; Jack Miller and Frank Layton with violating the National Firearms Act of 1934 ("NFA") when they transported a sawed-off double-barrel 12-gauge shotgun in interstate commerce. Miller and Layton argued that the NFA violated their Second Amendment right to keep and bear arms. The district court agreed and dismissed the case. The question before the Supreme Court was whether the Second Amendment protects an individual's right to keep and bear a sawed-off double barrel shotgun? The Supreme Court said No. In writing the unanimous decision of the court, Justice James Clark McReynolds wrote that because possessing a sawed-off double barrel shotgun does not have a relationship to the preservation or efficiency of a well-regulated militia, the Second Amendment does not protect the possession of such a gun. The meaning of the judgment is that owning guns is not prohibited; however, guns that have the possibility of superfluous and mass injury and death are outside purview of the Second Amendment. In the words of the jurist "instruments that cannot contribute to common defense are not protected by the Second Amendment" (Oyez, n.d.). After this judgment, most lower courts held that the Second Amendment protected gun rights only of service in the militia and hence did not prevent the government from restricting private gun ownership. However, in 2008, a matter involving Plaintiffs from the United States capital came before the Supreme Court. The matter is known as the District of Columbia v. Heller.

DISTRICT OF COLUMBIA V. HELLER

In District of Columbia v. Heller (2008), the district of Columbia passed a law criminalizing ownership and possession of an unregistered gun and prohibited the registration of handguns in the 1970's. This was because of the high rate of crime in the district of Columbia at that time. The only type of gun permitted was a long gun which must be always locked. The Circuit Court (Court of Appeal) held that the right to bear arms existed but was limited, meaning that the type of gun and how it can be used can be regulated through legislation. However, the Supreme Court, in a 5-4 decision known as one of the longest ever decision of the Supreme Court (150 pages) answered the question as to "whether the provisions of the District of Columbia Code that restricted the licensing

of handguns and required that licensed firearms kept in the home to be kept nonfunctional violated the Second Amendment?". Justice Scalia, delivering the opinion of the court held that the ban on registering handguns and the requirement to keep guns in the home disassembled or nonfunctional with a trigger lock mechanism violated the Second Amendment. The court further held that to state that the amendment limits the right to own guns to only those in a militia would create a problem. The court further stated that the Second Amendment guarantees an individual's right to possess and carry weapons in case of confrontation, hence banning handguns which are commonly used for protection purposes or owning a gun and not keeping it functional violates the Second Amendment. The court further held that the right to "keep and bear Arms" is an individual right (Oyez, n.d.).
The determination of the above case did not solve the problem of gun violence, nor did it clearly state the role of the legislature in enacting laws on gun ownership. It left more questions than answers. However, in 2022, the Supreme Court once again considered a case on the Second Amendment while ultimately considering questions as regards how much the government could regulate gun ownership and gun use.

NEW YORK STATE RIFLE & PISTOL ASSOCIATION, INC., V. BRUEN

Like many human right organizations, Amnesty International USA and the Gun Violence and Human Rights initiative of the Whitney R. Harris World Law Institute wrote a brief in support of the respondents in New York State Rifle & Pistol Association, Inc., v. Bruen (2022). In the said case, the Supreme Court was called to answer the question on whether a New York's law requiring that applicants for unrestricted concealed-carry licenses demonstrate a special need for self-defense did not violate the Second Amendment. In other words, does an applicant need to show special need for self-defense to be granted a license to own a gun in New York? In the New York regulation that was the subject before the Supreme Court, the law enunciated that proper cause must be shown before a person will be granted license to own a gun. In the Amici brief filed by Amnesty International, arguing from a human rights perspective, they enunciated that the regulation of private firearm transportation would hopefully reduce gun violence rate, however laws on the right to bear arms increases violent crimes using firearms. They further urged that the U.S in compliance with its obligations under human rights law to uphold New York's gun control legislation. The crux of their argument was that the Supreme Court should interpret the U.S law, including the constitution as consistent with U.S obligations under international law. They referred the court to the constitution's Supremacy Clause which enunciated those treaties "shall be the supreme law of the land" and that judicial decisions inconsistent with treaty obligations put the United States in breach of its international law obligations (Sosa v. Alvarez Machain, 2004; Chew Heong v. United States, 1884). They also referred to the case of Heller, where the Supreme Court stated that the right to own guns existed but had its limits. The implication of Heller's judgment was that states may put reasonable limitations on firearm purchase, possession, storage, and its carry in public. Their argument was that the absence of such limitations would put the United States in violation of its obligations under the International Human Right Laws to protect the rights to life, security of a person and health. Furthermore, the United States' best chance at complying with the obligations they owed to the citizens and residents was the enactment of gun ownership regulatory laws through federal and/or state legislation. This in their opinion is what the State of New York had done. Amnesty International among other bodies argued that if the Supreme Court hold that the State of New York's licensing

regime is unconstitutional, it will impede or prevent U.S states that seek to pass legislation protecting their citizens and residents from private gun violence, and ultimately call into question reasonable licensing requirements enacted by other U.S states to prevent private firearm violence. Alas, the Supreme Court in an unprecedented judgment delivered by Justice Thomas held that - "New York's proper-cause requirement violates the Second and Fourteenth Amendment in that it prevents law-abiding citizens with ordinary self-defense needs from exercising their right to keep and bear arms. We therefore reverse the judgment of the Court of Appeals and remand the case for further proceedings consistent with this opinion. It is so ordered." Summarily New York's gun law was struck down. Justice Breyer in her dissent argued that states should be able to pass restrictions to curb the number of deaths caused by gun violence, and the Court's decision "severely burdens the States' efforts to do so" (Oyez, n.d.). Her opinion, I quite agree with. Since the decision of the apex court in 2022, the situation of gun violence in the United States has not fared better. Some have even argued that the decisions from the supreme court have caused more harm than good (Tailor, n.d.). District of Columbia v. Heller sets the framework for gun regulations till today (Shusterman, 2020). It expanded the scope of the right to bear arms by a regulated militia to an individual's right to bear arms (Shusterman, 2020), which came with a lot of consequences. Justice Stevens in his dissent claimed that the "'right to keep and bear arms' existed only to protect the right to possess and use firearms in connection with service in a state-organized militia". However, Heller's majority decision permitted handguns for self-defense but unfortunately this tool that should be used only for defense are commonly reported as the primary firearms used in cases of homicide (Joselyn Law Firm, n.d.). Commenting on the Supreme Court's decision in Bruen, Brennan Center for Justice referred to it as the most dangerous gun ruling in history at the worst possible time. The writer in his opinion stated that the court relied on a very selective reading of history. Some of the issues raised were that the court's ruling offered surprisingly little guidance about what kinds of limits on carrying weapons New York could enact (Waldman, n.d.). Another issue was the text, history and tradition framework which Ian Milhiser calls impractical (Millhiser, 2022). Generally, with the current state of things, the supreme court decision has not made things better.

GUN VIOLENCE AND HUMAN RIGHTS

As demonstrated by statistical data (Gun Violence Archive, n.d.), the problem of gun violence persists in the United States, prompting critical inquiries into the effectiveness of existing regulatory frameworks. The pervasive nature of gun violence not only poses substantial threats to public safety but also carries profound implications for the human rights of American citizens. I will briefly discuss the human rights impacted by gun violence before delving deeper into the significant infringement upon the right to life. According to the United Nations, "Human rights are rights inherent to all human beings, regardless of race, sex, nationality, ethnicity, language, religion, or any other status. Human rights include the right to life and liberty, freedom from slavery and torture, freedom of opinion and expression, the right to work and education, and many more. Everyone is entitled to these rights, without discrimination" (United Nations, n.d.). From this definition, everyone including Americans have human rights and these rights should be protected. Some of the rights that are continuously infringed upon by gun violence are explained below.

THE RIGHT TO SECURITY OF PERSON

Gun violence and the proliferation of firearms endanger the security of individuals living in the United States. Loopholes in gun regulations leave women and children in domestic violence situations vulnerable, enabling their abusers to obtain firearms (Zeoli et al., 2018). People of color often fall victim to excessive force by law enforcement or individuals invoking Stand Your Ground laws, with acts of firearm violence rarely being punished by the state (Humphreys et al., 2017; National Urban League et al., 2013). More broadly, daily gun violence threatens the security of all members of the U.S. population, whether they are going to school, worshiping, neighborhood interactions, civic participation, going to the hospital, attending a concert, or banking. Nevertheless, every human being is entitled to the right to personal security. This right is articulated in Article 3 of the Universal Declaration of Human Rights and Article 9(1) of the International Covenant on Civil and Political Rights. Similarly, Article 5(b) of the International Convention on the Elimination of All Forms of Racial Discrimination ensures the right to personal security and protection by the State against violence or bodily harm, whether inflicted by government officials or by any individual, group, or institution.' This right is also enshrined in most regional human rights instruments. A State breaches this right to security when it fails to implement adequate measures to address legitimate threats to the safety of individuals under its jurisdiction.

THE RIGHT TO BE FREE FROM ALL FORMS OF RACIAL DISCRIMINATION

According to Brady (n.d.) African Americans face a twofold higher likelihood of succumbing to gun violence compared to their white counterparts, and they are 14 times more likely than white Americans to sustain injuries from such incidents. The U.S. Department of Justice has acknowledged in its reports that there is substantial evidence indicating racial bias in firearm-related deaths caused by U.S. police officers. This underscores the persistent issue of racial discrimination in the United States. Article 2(d) of ICERD provides that "Each State Party shall prohibit and bring to an end, by all appropriate means, including legislation as required by circumstances, racial discrimination by any persons, group or organization" (International Convention on the Elimination of All Forms of Racial Discrimination, 1965). More so, Individuals who are assumed to be victims of racial discrimination are not obligated to demonstrate discriminatory intent, if the outcome manifests a discriminatory impact (Laurent Gabre Gabaroum v. France, 2016; United Nations, n.d.).

Furthermore, the Fourteenth Amendment Equal Protection Clause states that no state shall "deny to any person within its jurisdiction the equal protection of the laws" (U.S. Const. amend. XIV). This provision has been utilized to combat racial discrimination in the United States. International human rights law, like U.S. law, guarantees equal treatment and protection from discrimination for all individuals, affirming that everyone is entitled to the same fundamental rights regardless of race or ethnicity.

THE RIGHT TO FREEDOM OF RELIGION, EXPRESSION, OPINION, AND BELIEF

Freedom of religion is a non-derogable right (International Covenant on Civil and Political Rights, 1966, art. 4), encompassing the right of all individuals to worship or assemble in connection with their religion or belief (United Nations Commission on Human Rights, 2005; United Nations Human Rights Council, 2007; United Nations General Assembly, 2011). Unfortunately, in recent years, mass shootings have increasingly targeted places of worship, such as the Pittsburgh Tree of

Life Synagogue in 2018, a church in Sutherland Springs, Texas in 2017, the Emanuel AME Church in Charleston, South Carolina in 2015, and a Sikh temple in Wisconsin in 2012. The widespread availability of firearms and easy access to guns may hinder the right of individuals in the United States to practice their religion due to the legitimate fear of becoming victims of firearm violence because of their religious choices. In a post by Adam Geller for AP News, he reported that "In a survey of 1,000 Protestant pastors, conducted in 2019 by the Southern Baptist Convention's research division, 62 percent said they had developed plans for responding to an active shooter. Nearly half said some in their congregations are now armed to provide security when they gather for prayer" (Geller, n.d.).

The U.S. government has recognized that gun violence in religious settings infringes upon victims' right to freely practice their faith. In its 2015 Report to the Human Rights Council during the Universal Periodic Review, the U.S. government highlighted the fatal shooting at a Kansas City Jewish community center as an example of religious discrimination and hate crimes. Similarly, the pervasive gun violence in the United States can deter individuals from expressing their opinions or exercising their freedom of expression due to fear of threats or violence. The fear of retaliation is a significant concern; people may worry that voicing certain opinions, particularly those that are controversial or politically charged, could make them targets of gun violence. This fear is especially pronounced in environments where heated debates occur, such as political rallies, protests, or social media. Consequently, the potential for violent retaliation can lead individuals to self-censor, suppressing their true thoughts and beliefs (Robertson et al., 2018).

Additionally, in communities with high rates of gun violence, there is often a suppression of dissent. Individuals may refrain from speaking out against local issues or authorities due to fear of violent retribution. This can create a culture of silence where critical voices are stifled, and important issues are not addressed. The fear of speaking out can prevent necessary dialogue and hinder the community's ability to address and solve local problems. Public gatherings are also affected by the threat of gun violence. The possibility of mass shootings at events such as rallies, protests, and community meetings can discourage people from attending and participating. This fear of potential violence can suppress collective action and civic engagement, which are vital aspects of a democratic society. When people are afraid to gather and express their views publicly, the health of democratic processes is compromised.

Moreover, there is a chilling effect on the media. Journalists and media personnel may be wary of covering certain stories or investigating issues related to gun violence, organized crime, or controversial political topics due to concerns for their safety. This self-censorship can limit the public's access to important information and diverse viewpoints, which are crucial for an informed citizenry.

Advocacy groups also face challenges due to gun violence. Organizations that work on contentious issues, such as gun control, may find it difficult to mobilize supporters and conduct campaigns. Volunteers and activists may be less willing to participate in public advocacy if they believe it could put them at risk. This can weaken the efforts of these groups to bring about social and political change.

Finally, the psychological impact of gun violence cannot be ignored. The constant threat of violence can create a pervasive sense of insecurity and anxiety. This psychological burden can discourage individuals from engaging in public discourse or participating in community activities, as they may

prioritize their personal safety over their right to free expression. The fear of becoming a victim of gun violence can overshadow the desire to speak out, thereby stifling the vibrant exchange of ideas that is essential for a healthy society. The pervasive fear of gun violence creates an environment where individuals are hesitant to express their opinions or participate in public life. This undermines the fundamental democratic principles of free speech and open dialogue, ultimately weakening the fabric of democratic society.

THE RIGHT TO LIFE

Article 6 of the ICCPR states that "every human being has the inherent right to life. This right shall be protected by law. No one shall be arbitrarily deprived of his life" (International Covenant on Civil and Political Rights, 1966, art. 6).

General comment No.36 paragraph 2 on Article 6 of the ICCPR (UN Human Rights Committee, 2019) recognizes and protects the right to life of all human beings. It states that "..the right to life is the supreme right from which no derogation is permitted, even in situations of armed conflict and other public emergencies that threaten the life of the nation. The right to life has crucial importance both for individuals and for society. It is most precious for its own sake as a right that is embedded in every human being, it also constitutes a fundamental right, the effective protection of which is the prerequisite for the enjoyment of all other human rights and the content of which can be informed and infused by other human rights." The first sentence in paragraph 3 of the same comment reads that "the right to life is a right that should not be interpreted narrowly. It concerns the entitlement of individuals to be free from acts and omissions that are intended or may be expected to cause their unnatural or premature death, as well as to enjoy a life with dignity.."

Comment 11 reads that "the second sentence of article 6 (1) requires that the right to life be protected by law, while the third sentence requires that no one be arbitrarily deprived of life" (UN Human Rights Committee, 2019, comment 11).

Comment 15 reads among other things, that "..a State party must rigorously limit the powers afforded to private actors and ensure that strict and effective measures of monitoring and control, as well as adequate training, are in place in order to guarantee, inter alia, that the powers granted are not misused and do not lead to arbitrary deprivation of life" (UN Human Rights Committee, 2019, comment 15). The second sentence of article 6 (1) of the ICCPR provides that the right to life "shall be protected by law" (International Covenant on Civil and Political Rights, 1966, art. 6(1)). Comment 18 reads that this implies "that States parties must establish a legal framework to ensure the full enjoyment of the right to life by all individuals as may be necessary to give effect to the right to life. The duty to protect the right to life by law also includes an obligation for States parties to adopt any appropriate laws or other measures to protect life from all reasonably foreseeable threats, including from threats emanating from private persons and entities" (UN Human Rights Committee, 2019, comment 18).

The implication of the letters of this treaty is that:

- The rights to life of the citizens of a state party must be protected (comment 11),
- The United States through its legislature can enact laws that will protect the right to life of its citizens,
- The duty of the state to protect the right to life includes an obligation for state parties to adopt appropriate laws or other measures (comment 18),

- There should be strict and effective measures to ensure the protection of these rights among private persons (comment 15).

If the provisions of the ICCPR are anything to go by, viz-a-viz the rate of gun violence in the United States, its provisions are being flouted and totally disregarded. Burden has been placed on states to exercise due diligence to protect the lives of individuals against deprivations caused by persons or entities whose conduct is not attributable to state (UN Human Rights Committee, 2019, comment 7). Due diligence in my opinion would mean, enacting laws that drastically restrict the ownership, possession, purchase and trading of firearms. It could even mean criminalizing the ownership and possession of guns except for law enforcement. A due diligence obligation exists under International Human Rights Law and everything reasonably possible should be done to meet that standard. To monitor compliance to the provisions of the ICCPR, independent experts are appointed in a committee known as the Human Rights Committee (United Nations Office of the High Commissioner for Human Rights, n.d.).

The Human Rights Committee is saddled with the responsibility of monitoring the implementation of the ICCPR and enforcing its provisions. It carries this out by obligating all members to submit a report; usually every four years on how the rights contained in the ICCPR are being implemented (United Nations Office of the High Commissioner for Human Rights, n.d.). Usually, the committee releases a list of issues prior to submissions of these reports by member states. These lists of issues are meant to guide the submissions to be made by member states. After submissions are made, the HRC conducts a review of the reports in meetings and gives feedback by issuing a list of observations and recommendations. These observations identify areas of concern and could request additional information from the U.S to be supplied within a year, on measures taken to address the salient issue or issues. The attention of the HRC has been drawn to the issue of gun violence, but human right advocates must keep mounting pressure. While submissions have been made on closely related issues like random murders, the specific issue of the lack of stringent gun regulation as the root cause of gun violence was not really emphasized. More emphasis should be placed on it. More so, the HRC considers individual complaints or petitions relating to state parties to the First Optional Protocol to the ICCPR. The person filing this complaint must have experienced a violation of their rights (United Nations Office of the High Commissioner for Human Rights, 2005). Third parties are allowed to act on behalf of individuals, either when the individuals have given written consent or when they are incapable of providing such consent (United Nations Office of the High Commissioner for Human Rights, 2005). Several lawsuits have been filed directly to the HRC by individuals whose rights have been breached by states, and in some of these instances, they have obtained positive results. See: Weiss v Austria (University of Minnesota Human Rights Library, 2003), Love v Australia (University of Minnesota Human Rights Library, 2003). A group of people whose rights have been breached collectively can also file a class action as in the case of Aalbersberg and 2,084 other Dutch citizens v. Netherlands (University of Minnesota Human Rights Library, 2006), An association can also file an action as in the case of Ms. Nicole Beydon and 19 other members of the association "DIH Mouvement de protestation Civique v. France (University of Minnesota Human Rights Library, 2005), Disabled and handicapped persons in Italy v. Italy (University of Minnesota Human Rights Library, 1984), where the rights of all the members of that association has been breached.

Broadly speaking, every citizen of the United States has been in one way or another victim directly or indirectly of gun violence. Hence, is it not surprising that no one has brought a petition against

the United States to hold the government accountable like in Australia and other countries before the HRC? Unfortunately, this is not possible because the United States has not ratified the Optional Protocol to the ICCPR. The Optional Protocol is the law that recognizes the competence of the Committee to receive and consider communications from individuals subject to its jurisdiction who claim to be victims of a violation by that State Party of any of the rights outlined in the Covenant. However, due to the United States' lack of ratification, utilizing this avenue to hold the United States accountable would be futile (Optional Protocol to the International Covenant on Civil and Political Rights, 1966).

CONCLUSION

International human rights organizations, other states, and civil society groups can exert pressure on the United States to fulfill its human rights obligations, including those related to gun violence prevention, through diplomatic channels, public campaigns, and advocacy efforts. On January 14, 2019, the American Civil Liberties Union (ACLU) submitted a suggested list of issues to the HRC. More than 50 civil society and other NGOs also made submissions to the HRC touching on several issues (United Nations Office of the High Commissioner for Human Rights, 2019). The Human Rights Committee has recognized that gun violence can breach the duty to protect life and has urged the United States to "take all necessary measures to fulfill its obligation to effectively protect the right to life." Over two decades ago, during its first review of the United States in 1995, the Committee expressed regret over the easy accessibility of firearms to the public and criticized the inadequacy of federal and state legislation in ensuring the protection and enjoyment of the right to life and security of individuals as guaranteed under the Covenant. Implementing stricter laws and court decisions that reinforce these laws, particularly those aimed at restricting gun ownership and public carrying of guns, will play a crucial role in decreasing the prevalence of gun violence in the United States. It is obvious that the current legal framework as it is will not solve the problem of gun violence hence it is reasonable to take other legislative measures. The persistent occurrence of gun violence in the United States represents an ongoing infringement upon the human rights of its citizens by the government. It is imperative that substantial efforts are visibly undertaken to address this pressing issue. More legal challenges related to gun violence could also be a vital tool in holding governmental bodies accountable and motivating them to take decisive action in addressing public safety concerns. These challenges aim to ensure that government entities fulfill their duties to protect citizens from foreseeable harm and adhere to constitutional and statutory obligations regarding firearms regulation. By leveraging legal mechanisms, advocates seek to prompt meaningful reforms, enact stricter regulations, and allocate resources effectively to combat the pervasive threat of gun violence within communities. Several centers for gun violence research and prevention exist in the United States, working tirelessly to reduce gun violence to the barest minimum. Non-profit organizations dedicated to addressing gun violence are also playing a crucial role in this effort. However, the most important factor in achieving significant progress is the collective action of all three branches of government. The Legislative, executive, and judicial bodies must work together cohesively to implement effective policies and enforce laws that address the root causes of gun violence. Until such a unified approach is adopted, the persistent threat of gun violence is likely to continue.

Also, the United States must take its obligations under human rights treaties more seriously and ensure compliance with the provisions of those it has ratified. It is notable that the United States has ratified only three of the nine core human rights treaties and two optional protocols. To demonstrate a genuine commitment to human rights, the United States should consider ratifying all remaining treaties and their additional protocols.

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